

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ASIA BETHEA,

Plaintiff,

-against-

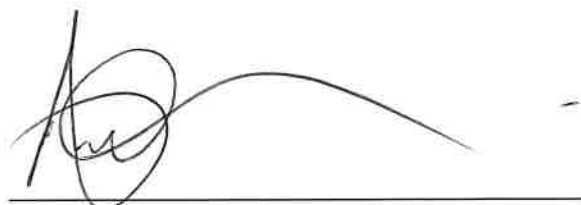
THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, P.O./SGT./LT./CPT. MONELLI (Shield
no.: presently unknown), P.O. JONATHAN MEO (Shield no.:
23103), P.O. JOHN DOES (1-5) (Identity and badge no.:
presently unknown),

Defendants.
-----X

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's Attorneys within 20 days after the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
August 12, 2024



Andrew G. Meier
ROSENBAUM & ROSENBAUM, P.C.
Attorneys for Plaintiff
100 Wall Street, 15th Floor
New York, NY 10005

TO: See Attached Rider

RIDER TO SUMMONS**THE CITY OF NEW YORK***c/o NEW YORK CITY CORPORATION COUNSEL'S OFFICE*

100 Church Street

New York, New York 10007

NEW YORK POLICE DEPARTMENT*c/o NEW YORK CITY CORPORATION COUNSEL'S OFFICE*

100 Church Street

New York, New York 10007

P.O./SGT./LT./CPT. MONELLI (Shield no.: presently unknown)*c/o NEW YORK CITY CORPORATION COUNSEL'S OFFICE*

100 Church Street

New York, New York 10007

P.O. JONATHAN MEO (Shield no.: 23103)*c/o NEW YORK CITY CORPORATION COUNSEL'S OFFICE*

100 Church Street

New York, New York 10007

P.O. JOHN DOES (1-5) (Identity and badge no.: presently unknown)*c/o NEW YORK CITY CORPORATION COUNSEL'S OFFICE*

100 Church Street

New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
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Plaintiff,

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THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, P.O./SGT./LT./CPT. MONELLI (Shield
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23103), P.O. JOHN DOES (1-5) (Identity and badge no.:
presently unknown),

Defendants.
-----X

Index No.:

**VERIFIED
COMPLAINT**

Plaintiff, by her attorneys, ROSENBAUM & ROSENBAUM, P.C., complaining of the
Defendants, respectfully sets forth and alleges the following, upon information and belief:

1. At all relevant times, plaintiff, ASIA BETHEA, is and was a resident of the State of New York, County of Bronx.
2. Upon information and belief, and at all relevant times, defendant, THE CITY OF NEW YORK (hereinafter referred to as "CITY"), was and still is a municipal corporation organized and existing pursuant to the laws of the State of New York.
3. That at all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT (hereinafter referred to as "NYPD"), was and still is a public authority and/or agency of the defendant CITY duly authorized to and doing business in the County, City and State of New York.
4. At all relevant times, defendant THE CITY OF NEW YORK, operated, maintained managed, supervised and controlled a police department as part of and in conjunction with its municipal functions.

5. Prior to the commencement of this action and within 90 days after this claim arose, Plaintiff duly served upon the Defendant, THE CITY OF NEW YORK, a notice in writing duly sworn to and verified, setting forth the name and address of the plaintiff and the attorney, the nature of the claim, the time when, the place where and the manner in which the claim arose, the injuries sustained as far as then ascertainable, that the aforesaid claim contained a clause that unless said claim was adjusted and paid within the time specified by law, that the plaintiff would commence an action against the defendants.
6. More than 30 days have elapsed since the presentation of said claim, and the aforesaid municipal corporation has rejected, refused and neglected to make an adjustment or payment thereof, and 1 year and 90 days have not elapsed since the cause of action arose upon which said claim is made.
7. An oral examination of the Plaintiff pursuant to Section 50-h of the General Municipal Law was conducted on March 27, 2024.
8. Prior to the commencement of this action and within 90 days after this claim arose, plaintiffs duly served upon the Defendant, NYPD, a notice in writing duly sworn to and verified, setting forth the name and address of the plaintiffs and the attorney, the nature of the claim, the time when, the place where and the manner in which the claims arose, the injuries sustained as far as then ascertainable, that the aforesaid claims contained a clause that unless said claim was adjusted and paid within the time specified by law, that the plaintiffs would commence an action against the defendant.
9. More than 30 days have elapsed since the presentation of said claim, and the aforesaid municipal corporation has rejected, refused and neglected to make an adjustment or

payment thereof, and 1 year and 90 days have not elapsed since the cause of action arose upon which said claim is made.

10. Upon information and belief, Defendant, NYPD, has made no request for a Statutory Hearing.
11. At all relevant times, defendant THE CITY OF NEW YORK, has a duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant Officers in the protection of the Constitutional rights of the plaintiff under the Fourteenth Amendment to the United States Constitution.
12. At all relevant times, defendant THE CITY OF NEW YORK, has a duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant Officers in the protection of the Constitutional rights of the plaintiff under the First Amendment to the United States Constitution.
13. At all relevant times, defendant THE CITY OF NEW YORK, has a duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant Officers in the protection of the Constitutional rights of the plaintiff under the Fourth Amendment to the United States Constitution.
14. At all relevant times, defendant THE CITY OF NEW YORK, has a duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant Officers in the protection of the Constitutional rights of the plaintiff under the Fifth Amendment to the United States Constitution.
15. At all relevant times, defendant THE CITY OF NEW YORK, has a duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command,

Precinct and Patrol levels, the defendant Officers in the protection of the Constitutional rights of the plaintiff under Section 5 of the New York State Constitution.

16. At all relevant times, defendant THE CITY OF NEW YORK, has a duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant Officers in the protection of the Constitutional rights of the plaintiff under Section 8 of the New York State Constitution.

17. At all relevant times, defendant THE CITY OF NEW YORK, has a duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant Officers in the protection of the Constitutional rights of the plaintiff under Section 9 of the New York State Constitution.

18. At all relevant times, defendant THE CITY OF NEW YORK, has a duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant Officers in the protection of the Constitutional rights of the plaintiff under Section 12 of the New York State Constitution.

19. At all relevant times, defendant THE CITY OF NEW YORK, had the duty to competently and sufficiently hire, train, and retain with the Police Academy and at the Command, Precinct and Patrol levels, the defendant officers to conform their conduct to a standard, established by law, for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, recklessly, and/or negligently inflict injuries to citizens such as the plaintiff herein.

20. At all relevant times, defendant, THE CITY OF NEW YORK failed to competently and sufficiently hire, train and retain the defendant officers to conform and conduct themselves to a statute established by law for the protection of citizens, such as plaintiff, against

unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, recklessly, and/or negligently inflict injuries to citizens such as plaintiff.

21. That defendant, THE CITY OF NEW YORK, in violation of 42 U.S.C. §1983 failed to properly regulate officer's use of force.
22. That on August 11, 2023, defendant, THE CITY OF NEW YORK, in violation of 42 U.S.C. §1983, caused the plaintiff, ASIA BETHEA, to be injured, damaged, and sustain injuries in failing to competently hire, train and retain police officers, including but not limited to the defendant officers, to conform and conduct themselves to a standard established by law for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, recklessly and/or negligently inflict injuries to citizens such as plaintiff herein.
23. At all relevant times, defendant, NYPD, has a duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant Officers in the protection of the Constitutional rights of the plaintiff under the Fourteenth Amendment to the United States Constitution.
24. At all relevant times, defendant, NYPD, has a duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant Officers in the protection of the Constitutional rights of the plaintiff under the First Amendment to the United States Constitution.
25. At all relevant times, defendant NYPD, has a duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels,

the defendant Officers in the protection of the Constitutional rights of the plaintiff under the Fourth Amendment to the United States Constitution.

26. At all relevant times, defendant NYPD, has a duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant Officers in the protection of the Constitutional rights of the plaintiff under the Fifth Amendment to the United States Constitution.

27. At all relevant times, defendant NYPD, has a duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant Officers in the protection of the Constitutional rights of the plaintiff under Section 5 of the New York State Constitution.

28. At all relevant times, defendant NYPD, has a duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant Officers in the protection of the Constitutional rights of the plaintiff under Section 8 of the New York State Constitution.

29. At all relevant times, defendant NYPD, has a duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant Officers in the protection of the Constitutional rights of the plaintiff under Section 9 of the New York State Constitution.

30. At all relevant times, defendant NYPD, has a duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant Officers in the protection of the Constitutional rights of the plaintiff under Section 12 of the New York State Constitution.

31. At all relevant times, defendant, NYPD, had the duty to competently and sufficiently hire, train, and retain with the Police Academy and at the Command, Precinct and Patrol levels, the defendant officers to conform their conduct to a standard, established by law, for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, recklessly, and/or negligently inflict injuries to citizens such as the plaintiff herein.
32. At all relevant times, defendant, NYPD failed to competently and sufficiently hire, train and retain the defendant officers to conform and conduct themselves to a statute established by law for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, recklessly, and/or negligently inflict injuries to citizens such as plaintiff.
33. That defendant, NYPD, in violation of 42 U.S.C. §1983 failed to properly regulate officer's use of force.
34. That on August 11, 2023, defendant, NYPD, in violation of 42 U.S.C. §1983, caused the plaintiff, ASIA BETHEA, to be injured, damaged, and sustain injuries in failing to competently hire, train and retain police officers, including but not limited to the defendant officers, to conform and conduct themselves to a standard established by law for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, recklessly, and/or negligently inflict injuries to citizens such as plaintiff herein.
35. At all relevant times, Defendant, P.O./SGT./LT./CPT. MONELLI (Shield no.: presently unknown), is employed as a police officer by the Police Department of the CITY OF NEW YORK.

36. At all relevant times, Defendant, P.O. JONATHAN MEO (Shield no.: 23103), is employed as a police officer by the Police Department of the CITY OF NEW YORK.
37. At all relevant times, Defendant, P.O. JOHN DOES (1-5) (Identity and badge no.: presently unknown), is employed as a police officer by the Police Department of the CITY OF NEW YORK.
38. At all relevant times, Defendant, P.O./SGT./LT./CPT. MONELLI (Shield no.: presently unknown), was acting within the scope of his employment and/or representative of the defendant THE CITY OF NEW YORK.
39. At all relevant times, Defendant, P.O. JONATHAN MEO (Shield no.: 23103), was acting within the scope of his employment and/or representative of the defendant THE CITY OF NEW YORK.
40. At all relevant times, Defendant, P.O. JOHN DOES (1-5) (Identity and badge no.: presently unknown), was acting within the scope of his employment and/or representative of the defendant THE CITY OF NEW YORK.
41. At all relevant times, Defendant, P.O./SGT./LT./CPT. MONELLI (Shield no.: presently unknown), was acting within the scope of his employment and/or representative of the defendant NYPD.
42. At all relevant times, Defendant, P.O. JONATHAN MEO (Shield no.: 23103), was acting within the scope of his employment and/or representative of the defendant NYPD.
43. At all relevant times, Defendant, P.O. JOHN DOES (1-5) (Identity and badge no.: presently unknown), was acting within the scope of his employment and/or representative of the defendant NYPD.

44. On August 11, 2023, plaintiff ASIA BETHEA, was lawfully and properly present upon the premises/public park known as Surf Playground, located on Surf Avenue between W 25th Street and W 27th Street, Brooklyn, New York 11224.
45. On August 11, 2023, defendant P.O./SGT./LT./CPT. MONELLI (Shield no.: presently unknown), was present and on duty upon the premises/public park known as Surf Playground, located on Surf Avenue between W 25th Street and W 27th Street, Brooklyn, New York 11224, as part of his regular and official employment as a police officer for the defendant THE CITY OF NEW YORK.
46. On August 11, 2023, defendant P.O. JONATHAN MEO (Shield no.: 23103), was present and on duty upon the premises/public park known as Surf Playground, located on Surf Avenue between W 25th Street and W 27th Street, Brooklyn, New York 11224, as part of his regular and official employment as a police officer for the defendant THE CITY OF NEW YORK.
47. On August 11, 2023, defendant P.O. JOHN DOES (1-5) (Identity and badge no.: presently unknown) was present and on duty upon the premises/public park known as Surf Playground, located on Surf Avenue between W 25th Street and W 27th Street, Brooklyn, New York 11224, as part of his regular and official employment as a police officer for the defendant THE CITY OF NEW YORK.
48. On August 11, 2023, defendant P.O./SGT./LT./CPT. MONELLI (Shield no.: presently unknown), was present and on duty upon the premises/public park known as Surf Playground, located on Surf Avenue between W 25th Street and W 27th Street, Brooklyn, New York 11224, as part of his regular and official employment as a police officer for the defendant NEW YORK CITY POLICE DEPARTMENT.

49. On August 11, 2023, defendant P.O. JONATHAN MEO (Shield no.: 23103), was present and on duty upon the premises/public park known as Surf Playground, located on Surf Avenue between W 25th Street and W 27th Street, Brooklyn, New York 11224, as part of his regular and official employment as a police officer for the defendant NEW YORK CITY POLICE DEPARTMENT.
50. On August 11, 2023, defendant P.O. JOHN DOES (1-5) (Identity and badge no.: presently unknown) was present and on duty upon the premises/public park known as Surf Playground, located on Surf Avenue between W 25th Street and W 27th Street, Brooklyn, New York 11224, as part of his regular and official employment as a police officer for the defendant NEW YORK CITY POLICE DEPARTMENT.
51. On August 11, 2023, plaintiff was caused to be unlawfully detained and assaulted by said Defendant, P.O./SGT./LT./CPT. MONELLI (Shield no.: presently unknown) upon the premises/public park known as Surf Playground, located on Surf Avenue between W 25th Street and W 27th Street, Brooklyn, New York 11224.
52. On August 11, 2023, plaintiff was caused to be unlawfully detained and assaulted by said Defendant, P.O. JONATHAN MEO (Shield no.: 23103) upon the premises/public park known as Surf Playground, located on Surf Avenue between W 25th Street and W 27th Street, Brooklyn, New York 11224.
53. On August 11, 2023, plaintiff was caused to be unlawfully detained and assaulted by said Defendant, Defendant, P.O. JOHN DOES (1-5) (Identity and badge no.: presently unknown) upon the premises/public park known as Surf Playground, located on Surf Avenue between W 25th Street and W 27th Street, Brooklyn, New York 11224.

54. On August 11, 2023, the defendant officers deprived plaintiff ASIA BETHEA of her rights and liberties as set forth in the Constitutions of the United States and of the State of New York.

55. On August 11, 2023, the injury of plaintiff ASIA BETHEA was caused by all defendants, their servants, agents and/or employees, without authority of law, or any reasonable case or belief that physical force was necessary.

56. That plaintiff ASIA BETHEA was unreasonably injured and thereby deprived of her rights, liberties, and freedoms under color of State of Law in violation of 42 U.S.C. §1983

57. That plaintiff, ASIA BETHEA did not possess a weapon of any kind during the incident of August 11, 2023.

58. That as a result of the aforesaid contact, plaintiff, ASIA BETHEA, was seriously and permanently injured.

59. That on August 11, 2023, in violation of the rights, privileges, and immunities guaranteed to her under the Fourteenth Amendment to the United States Constitution and under color of State Law, the defendant officers and each of them acting individually and in concert in violation of 42 U.S.C. §1983, while on duty, detained the plaintiff, even though the defendants knew or should have known plaintiff was wholly innocent.

60. That on August 11, 2023, in violation of the rights, privileges, and immunities guaranteed to her under the First Amendment to the United States Constitution and under color of State Law, the defendant officers and each of them acting individually and in concert in violation of 42 U.S.C. §1983, while on duty, detained the plaintiff, even though the defendants knew or should have known plaintiff was wholly innocent.

61. That on August 11, 2023, in violation of the rights, privileges, and immunities guaranteed to her under the Fourth Amendment to the United States Constitution and under color of State Law, the defendant officers and each of them acting individually and in concert in violation of 42 U.S.C. §1983, while on duty, detained the plaintiff, even though the defendants knew or should have known plaintiff was wholly innocent.
62. That on August 11, 2023, in violation of the rights, privileges, and immunities guaranteed to her under the Fifth Amendment to the United States Constitution and under color of State Law, the defendant officers and each of them acting individually and in concert in violation of 42 U.S.C. §1983, while on duty, detained the plaintiff, even though the defendants knew or should have known plaintiff was wholly innocent.
63. That on August 11, 2023, in violation of the rights, privileges, and immunities guaranteed to her under Section 5 to the New York State Constitution and under color of State Law, the defendant officers and each of them acting individually and in concert in violation of 42 U.S.C. §1983, while on duty, detained the plaintiff, even though the defendants knew or should have known plaintiff was wholly innocent.
64. That on August 11, 2023, in violation of the rights, privileges, and immunities guaranteed to her under Section 8 to the New York State Constitution and under color of State Law, the defendant officers and each of them acting individually and in concert in violation of 42 U.S.C. §1983, while on duty, detained the plaintiff, even though the defendants knew or should have known plaintiff was wholly innocent.
65. That on August 11, 2023, in violation of the rights, privileges, and immunities guaranteed to her under Section 9 to the New York State Constitution and under color of State Law, the defendant officers and each of them acting individually and in concert in violation of 42

U.S.C. §1983, while on duty, detained the plaintiff, even though the defendants knew or should have known plaintiff was wholly innocent.

66. That on August 11, 2023, in violation of the rights, privileges, and immunities guaranteed to her under Section 12 to the New York State Constitution and under color of State Law, the defendant officers and each of them acting individually and in concert in violation of 42 U.S.C. §1983, while on duty, detained the plaintiff, even though the defendants knew or should have known plaintiff was wholly innocent.

67. The detainment and physical force of the plaintiff was not justified by probable cause or other legal privilege.

68. The defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants.

69. The actions of the Defendant, P.O./SGT./LT./CPT. MONELLI (Shield no.: presently unknown), deprived plaintiff of her constitutional rights, said actions were a policy and/or custom of THE CITY OF NEW YORK and/or NYPD, and/or said conduct was ratified by NYPD personnel with decision making authority.

70. The actions of the Defendant, P.O. JONATHAN MEO(Shield # 23103), deprived plaintiff of her constitutional rights, said actions were a policy and/or custom of THE CITY OF NEW YORK and/or NYPD, and/or said conduct was ratified by NYPD personnel with decision making authority.

71. The actions of the Defendant, P.O. JOHN DOES (1-5) (Identity and badge no.: presently unknown), deprived plaintiff of her constitutional rights, said actions were a policy and/or custom of THE CITY OF NEW YORK and/or NYPD, and/or said conduct was ratified by NYPD personnel with decision making authority.

72. That the defendant THE CITY OF NEW YORK, its agents servants and/or employees failed to hire, train, supervise, discipline or in any other way control the defendant officers in the exercise of their functions; that their failure to enforce the laws of the State of New York and the CITY OF NEW YORK was and is carried out willfully, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to citizens of the State and CITY OF NEW YORK, including plaintiff herein.
73. That the defendant NYPD, its agents servants and/or employees failed to hire, train, supervise, discipline or in any other way control the defendant officers in the exercise of their functions; that their failure to enforce the laws of the State of New York and the NYPD was and is carried out willfully, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to citizens of the State and NYPD, including plaintiff herein.
74. That the plaintiff ASIA BETHEA did not commit any illegal act, either before or at the time she was improperly detained and injured and deprived of her constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C §1983, and the Constitution of the State of New York.
75. That at all times hereinafter mentioned, the defendant police officers were employed in their respective capacities by the defendant CITY OF NEW YORK and were acting under the color of their official capacity as State actors and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the CITY OF NEW YORK.

76. That at all times hereinafter mentioned, the defendant police officers were employed in their respective capacities by the defendant NYPD and were acting under the color of their official capacity as State actors and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the NYPD.
77. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant CITY OF NEW YORK has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.
78. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant NYPD has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.
79. The unlawful and illegal conduct of the defendants their agents, servants and/or employees and each of them, deprived plaintiff/decedent of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: the right of plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment *to* the Constitution of the United States.
80. That on or about August 11, 2023, in violation of the rights, privileges and immunities guaranteed to him under the Fourteenth Amendment to the United States Constitution and under the color of State law, the defendants acted individually and in concert causing the

plaintiff to have been injured and damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

81. THE CITY OF NEW, THE NEW YORK CITY POLICE DEPARTMENT, P.O./SGT./LT. MONELLI (sic)(Shield # presently unknown), P.O. JONATHAN MEO(Shield # 23103) their agents, servants, licensees, independent contractors and/or employees were negligent in the supervision, management and control of the police officers within THE CITY OF NEW, THE NEW YORK CITY POLICE DEPARTMENT ; THE CITY OF NEW, THE NEW YORK CITY POLICE DEPARTMENT, failed to properly hire, supervise, train, and discipline police officers at the time and place of the occurrence ; THE CITY OF NEW, THE NEW YORK CITY POLICE DEPARTMENT is responsible for the actions of the officers under the doctrine of *Respondeat Superior* ; THE CITY OF NEW and THE NEW YORK CITY POLICE DEPARTMENT promulgated and enforced an unconstitutional policy ; that the unconstitutional and unlawful assault, battery, detention, and use of excessive force by P.O. JONATHAN MEO(Shield # 23103) was ratified by P.O./SGT./LT. MONELLI (sic)(Shield # presently unknown) ; THE CITY OF NEW, THE NEW YORK CITY POLICE DEPARTMENT, P.O./SGT./LT. MONELLI (sic)(Shield # presently unknown), P.O. JONATHAN MEO(Shield # 23103) unlawfully detained, battered, and assaulted by use of excessive force the Plaintiff thereby resulting in a deprivation of her New York State and Federal Constitutional Rights ; Plaintiff was unlawfully detained, assaulted, and subject to use of excessive force resulting in a deprivation of her rights, liberties, and freedoms under color of State Law in violation of 42 U.S.C. § 1983 by THE CITY OF NEW, THE NEW YORK CITY POLICE DEPARTMENT, P.O./SGT./LT. MONELLI (sic)(Shield # presently unknown), P.O. JONATHAN MEO(Shield # 23103)

without probable or just cause ; THE CITY OF NEW and THE NEW YORK CITY POLICE DEPARTMENT failed to provide adequate training of its police officers while at the Police Academy and at the Command, Precinct, and Patrol levels ; failure to enforce and ensure compliance with the NYPD Patrol Guide regarding use of force and detention of members of the public ; Plaintiff asserts that THE CITY OF NEW, THE NEW YORK CITY POLICE DEPARTMENT, P.O./SGT./LT. MONELLI (sic)(Shield # presently unknown), P.O. JONATHAN MEO(Shield # 23103)'s actions were constituted negligence, assault, battery, excessive force, false imprisonment, intentional infliction of emotional distress, negligent infliction of emotional distress, unlawful detention, violations of Sections 5, 8, 9, 12 of the New York State Constitution, violations of the First, Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, violation of 42. U.S.C. § 1983, and Monell claims ; in that P.O. JONATHAN MEO(Shield # 23103) departed from good and accepted policing standards while confronting Plaintiff ; that Respondents owed a duty directly to Plaintiff to conform their conduct to a standard established by law for the protection of Plaintiff's physical safety so that plaintiff was not caused to fear for her physical well-being ; in that P.O. JONATHAN MEO(Shield # 23103) used unreasonable force that was not justified under the circumstances and that , P.O./SGT./LT. MONELLI (sic)(Shield # presently unknown) was present and ratified the unlawful detention, false imprisonment, assault, battery, unreasonable use of force used by P.O. JONATHAN MEO(Shield # 23103) ; in intentionally assaulting Plaintiff ; THE CITY OF NEW, THE NEW YORK CITY POLICE DEPARTMENT, P.O./SGT./LT. MONELLI (sic)(Shield # presently unknown), P.O. JONATHAN MEO(Shield # 23103) acted willfully, wantonly, maliciously, and with reckless disregard for the consequences so as to

display a conscious disregard for the dangers of harm and injury to the citizens, including Plaintiff, of the State and City of New York ; in failing to provide the Plaintiff with Due Process of Law in unlawfully detaining, use of excessive force, assaulting, battering, and imprisoning Plaintiff ; that the detention of Plaintiff was performed unlawfully, absent probable cause and/or reasonable articular suspicion to justify detention of Plaintiff ; in intentionally and/or negligently inflicting emotional distress upon the Plaintiff; in that there was a pattern and practice of use of excessive force, assault, battery, and unlawful detention within the 60th Precinct; and in other ways being willful, wanton, intentional, acting with a conscious disregard for the well being of the Plaintiff, or otherwise negligent.

82. By reason of the foregoing, the plaintiff ASIA BETHEA was caused to be illegally deprived of her liberty and civil rights, caused to suffer confinement, caused to be assaulted, battered and caused to suffer severe and grievous injuries.

83. This action falls within one or more of the exceptions contained in *C.P.L.R. § 1601 & 1602*.

84. By reason of the foregoing, Plaintiff, ASIA BETHEA, was damaged and seeks judgment against Defendants.

85. Upon information and belief, Plaintiff's damages exceed the monetary jurisdiction of all Courts below that would otherwise have jurisdiction over this action.

WHEREFORE, Plaintiff, ASIA BETHEA, demands judgment against Defendants, THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, P.O./SGT./LT./CPT. MONELLI (Shield no.: presently unknown), P.O. JONATHAN MEO (Shield no.: 23103), P.O. JOHN DOES (1-5) (Identity and badge no.: presently unknown), together with the costs and disbursements of this action.

Dated: New York, New York
August 12, 2024

A handwritten signature in black ink, appearing to read 'AG Meier', is written over a horizontal line.

Andrew G. Meier
ROSENBAUM & ROSENBAUM P.C.
Attorneys for Plaintiff
100 Wall Street, 15th Floor
New York, NY 10005

ATTORNEY VERIFICATION

STATE OF NEW YORK - COUNTY OF NEW YORK

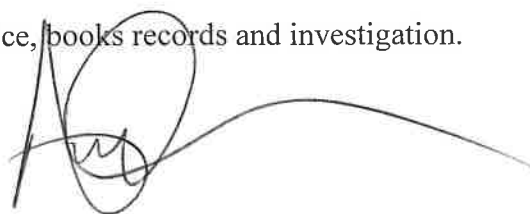
ANDREW G. MEIER, an attorney duly admitted to practice before the Courts of the State of New York hereby affirms the following upon information and belief to be true under penalty of perjury:

I am an attorney associated with **ROSENBAUM & ROSENBAUM, P.C.**, attorneys of record for the plaintiffs in the above action.

I have read the annexed **SUMMONS & VERIFIED COMPLAINT** and know the contents thereof. The same is true to my own knowledge, except as to the matters stated therein to be alleged upon information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by plaintiff, is that the plaintiff resides outside of the county in which I maintain my law office.

The grounds of my belief as to all matters not stated therein upon my own knowledge are as follows: a review of the file maintained by this office, books records and investigation.

Dated: New York, New York
August 12, 2024



Andrew G. Meier
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